

CHAPTER 17

An Act to raise the limit on the interest in the shares of a society registered under the Industrial and Provident Societies Act, 1893, which any one member may hold and to alter the conditions subject to which such a society may accept deposits without being treated as carrying on the business of banking.

[27th March 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Raising of
limit on share
of any one
member.

56 & 57 Vict.
c. 39.

1.—(1) The words “five hundred pounds” shall be substituted for the words “two hundred pounds” in section four of the Industrial and Provident Societies Act, 1893 (which limits to two hundred pounds the interest in the shares of a society registered under that Act which any one member may hold) and, consequently, in each place where the said words “two hundred pounds” occur in the following enactments (in each of which those words refer to the said limit) that is to say:—

(a) subsection (1) of section twenty-six of the said Act of 1893 as amended by subsection (2) of section five of the Industrial and Provident Societies (Amendment) Act, 1913,

(b) subsection (1) of section fifty-five of the said Act of 1893,

(c) paragraph 5 of the Second Schedule to the said Act of 1893,

(d) subsection (3) of section ninety-three of the Housing Act, 1936, and

(e) subsection (2) of section seventy-nine of the Housing (Scotland) Act, 1950.

3 & 4 Geo. 5.
c. 31.

26 Geo. 5 &
1 Edw. 8. c. 51.

14 Geo. 6.
c. 34.

(2) Where immediately before the date of the coming into force of this Act the rules of a society registered under the said Act of 1893 permitted members (other than registered societies) to hold the maximum of two hundred pounds then laid down by the said section four of the Act of 1893, the society's committee of management may, by a resolution recorded in writing, resolve that members be permitted to hold such greater amount as may be specified in the resolution (so long as that amount does not exceed the maximum of five hundred pounds laid down by the said section four as amended by this Act) and the rules shall have effect accordingly.

(3) A committee of management shall not have power to vary or revoke a resolution under subsection (2) of this section.

(4) If any amendment of the rules of a society is made after the coming into force of this Act, the power of the society's committee of management of passing a resolution under subsection (2) of this section shall determine on the date on which the amendment is registered under subsection (2) of section ten of the said Act of 1893 and, if the committee have already exercised that power, the rules of the society shall, after that date, have effect as if the resolution had not been passed:

Provided that this subsection shall not affect any interest in the shares of the society held by a member immediately before the said date.

2.—(1) In subsection (3) of section nineteen of the said Act of 1893 (which allows a society registered under that Act to accept deposits without being treated as carrying on the business of banking so long as not more than ten shillings is deposited at a time and not more than twenty pounds is taken from any one depositor) —

(a) the words "two pounds" shall be substituted for the words "ten shillings", and

(b) the words "fifty pounds" shall be substituted for the words "twenty pounds".

(2) Where immediately before the coming into force of this Act the rules of a society registered under the said Act of 1893 permitted the taking of deposits up to, but not in excess of, both of the said two limits then laid down by subsection (3) of the said section nineteen, the society's committee of management may, by a resolution recorded in writing, resolve that there shall be substituted for those limits such higher limits as may be specified in the resolution (so long as the limits laid down by subsection (3) of the said section nineteen as amended by this Act are not exceeded) and the rules shall have effect accordingly.

(3) A committee of management shall not have power to vary or revoke a resolution under subsection (2) of this section.

(4) If any amendment of the rules of a society is made after the coming into force of this Act, the power of the society's committee of management of passing a resolution under subsection (2) of this section shall determine on the date on which the amendment is registered under subsection (2) of section ten of the said Act of 1893 and, if the committee have already exercised that power, the rules of the society shall, after that date, have effect as if the resolution had not been passed:

Provided that this subsection shall not affect any sums standing deposited with the society immediately before the said date.

Short title,
citation, extent
and
commence-
ment.

3.—(1) This Act may be cited as the Industrial and Provident Societies Act, 1952, and the Industrial and Provident Societies Acts, 1893 to 1928, and this Act may be cited together as the Industrial and Provident Societies Acts, 1893 to 1952.

(2) This Act shall not extend to Northern Ireland and shall extend to the Channel Islands.

(3) This Act shall come into force one month after the date on which it is passed.

CHAPTER 18

An Act to confer certain immunities on the representatives in the United Kingdom of Commonwealth countries and the Republic of Ireland, and of the states and provinces of any of those countries, and on members of the staffs of such representatives, and on the families of such representatives and of members of their staffs, and on other persons in the service of the governments of those countries; and for purposes connected with the matters aforesaid. [27th March 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Immunities of
representatives
of Common-
wealth
countries and
Republic of
Ireland and
certain other
persons.

1.—(1) Subject to the provisions of this section—

- (a) a person for the time being recognised by Her Majesty's Government in the United Kingdom as the chief representative in the United Kingdom of any country to which this section applies, whether he is known by the title of High Commissioner for that country or by any other title, (in this section referred to as "a chief representative"), shall be entitled to the like immunity from suit and legal process, and the like inviolability of residence, official premises and official archives as are accorded to the envoy of a foreign sovereign Power accredited to Her Majesty;
- (b) such members of the official staff of a chief representative as are performing duties substantially corresponding to those performed by members of the official staff of an envoy of a foreign sovereign Power shall be entitled to the like immunity from suit and legal process as is accorded to members of the official staff of such an envoy;